

based on Defendants' actions. (See *Jenkins v. JP Morgan Chase Bank, N.A.* (2013) 216 Cal.App.4th 497, 522-523.) Plaintiff lacks standing.

Even if he did have standing, Business and Professions Code § 17200 prohibits any unlawful, unfair, or fraudulent business act or practice. (*Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 180; *Lueras, supra*, 221 Cal. App.4th at 33.) Plaintiff alleges three prongs. The unlawful prong is based on violations of Civil Code §§ 2924-2934, the same statutory violations underlying the negligence and cancellation claims. The unfair prong alleges Defendants forced Plaintiff to defend his property at a cost of time and money and deterred him from obtaining a Preliminary Injunction. The fraudulent prong alleges members of the public would be deceived by Defendants' conduct.

Plaintiff has not identified unlawful or unfair practices. Where a plaintiff cannot state a claim under the borrowed law, he cannot state a UCL claim under the unlawful prong based on those same violations. (*Ingels v. Westwood One Broadcasting Services, Inc.* (2005) 129 Cal.App.4th 1050, 1060.) The negligence and cancellation claims fail as analyzed above. Moreover, as stated above, fraud has not been shown as no foreclosure sale occurred. Defendants rescinded the Notice of Trustee's Sale on June 24, 2025.

Leave to Amend - The Court's prior ruling on the demurrer to the FAC was sustained with leave to amend since plaintiff had an opportunity to amend the complaint in response to the demurrer and the complaint had not shown on its face that it was incapable of amendment. (*City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747.) However, that rationale no longer applies. This is not Plaintiff's first opportunity to amend. While the SAC cured some specificity defects [particularly the identification of Sofia Pacheco and the specific backdated statements in the fraud claim], it failed to cure the fundamental legal deficiencies across all four causes of action: unjustifiable reliance and causation (Fraud); no tort duty in the lender-borrower context (Negligence); instruments not void or voidable with no imminent harm (Cancellation); no economic injury caused by Defendants' conduct (UCL). These remaining deficiencies are legal in nature and no additional facts can cure them. No reasonable possibility exists to cure these defects by further amendment.

3.

CASE #	CASE NAME	HEARING NAME
CVME2512672	CORREA VS AMERICAN HONDA MOTOR	MOTION TO COMPEL ANSWER/RESPONSE TO PRODUCTION OF DOCUMENTS SET ONE BY LORENA CORREA

Tentative Ruling: Motion to Compel Denied as to RFPs 7, 10, 28- 29, and 41. Granted as to RFP nos. 16-23, 26-27, and 71-75. Defendant ordered to produce verified code-compliant responses without objection within 20 days of this order.

Plaintiff now moves to compel Defendant to provide further responses to RFP nos. 7, 10, 16-23, 26-29, 41, and 71-75, arguing that the RFPs properly seek documents related to Defendant's internal investigation and analysis of the defects in the Vehicle, as well as Defendant's warranty and vehicle repurchase policies and procedures; all of

these documents are directly relevant to Plaintiff's claims; and Defendant's objections are boilerplate and lack merit.

In opposition, Defendant argues that Plaintiff failed to meet and confer in good faith; its substantive responses to nos. 7, 10, 28, 29, 41, and 72-75 are code-compliant; its objections to the other RFPs are proper because the request are overbroad, Plaintiff is not entitled to information about other vehicles, the cause of the defects is not relevant, AB 1755 limits the scope of appropriate Song Beverly Act discovery, and Plaintiff is not entitled to ESI.

In reply, Plaintiff argues that Defendant fails to justify its meritless objections; the "broad definitions" of the defects complained about by Defendant are based on Plaintiff's documented complaints/repair history and Defendant's articulation of the defects; there is good cause for the documents; she is entitled to ESI; she met and conferred in good faith; and AB 1755 does not apply and does not limit discovery.

Meet and Confer - A motion to compel further responses to RFPs must be accompanied by a declaration describing in detail the reasonable and good-faith efforts that each party has made to confer and resolve informally each issue presented by the motion. (C.C.P. §§ 2016.040, 2031.310(b)(2).) Each party must "confer in person, by telephone, or by letter with an opposing party or attorney," and make a "reasonable and good faith attempt to resolve informally any dispute concerning discovery"; failure by any party to do so is a misuse of the discovery process. (C.C.P. 2023.010(i).) The purpose of the meet and confer requirement is to force lawyers to reexamine their positions, and to narrow their discovery disputes to the irreducible minimum, before calling upon the court to resolve the matter. (*Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1016-17.) Evaluating whether a "reasonable and good faith attempt" to meet and confer was made requires an "evaluation of whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appears likely to bear fruit." (*Clement v. Alegria* (2009) 177 Cal.App.4th 1277, 1294.) The level of effort that is reasonable is different in different circumstances and may vary with the prospects for success, but the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate. (*Ibid.*) For purposes of determining whether a motion to compel discovery was preceded by a reasonable and good faith effort to meet and confer, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate. (*Clement v. Alegria* (2009) 177 Cal.App.4th 1277, 1294, citing *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1439.)

Defendant argues that Plaintiff did not meet and confer in good faith because it refused a compromise offered by Defendant. (Opposition, p. 2:19-25.) However, no party is required to agree to a compromise offered by the other party. It is undisputed that counsel for the parties met and conferred telephonically regarding the discovery. (Decl. of Destiaie Demery ["Demery Decl."] at ¶ 20; Decl. of Avetik Galstyan ["Galstyan Decl."] at ¶ 9.) This is sufficient to satisfy Plaintiff's statutory duty to meet and confer prior to filing this motion.

Elements of a Song-Beverly Claim - To prevail on a claim under the Song Beverly Act, Plaintiff must prove a nonconformity with a vehicle that substantially impaired its

use, value, or safety that Defendant and/or its authorized representatives failed to repair after a reasonable number of attempts. (*Oregel v. Am. Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094.) The Song-Beverly Act also provides a right of action to recover damages and other relief if the vehicle was sold with a known defect. (Civ. Code § 1794(a); *Mexia v. Rinker Boat Co., Inc.* (2009) 17 Cal.App.4th 1297, 1304-05 (implied warranty of merchantability). Under the Song-Beverly Act, a “manufacturer has an affirmative duty to replace a vehicle or to make restitution to the buyer if the manufacturer is unable to repair the new vehicle after a reasonable number of repair attempts.” (*Lukather v. General Motors, LLC* (2010) 181 Cal.App.4th 1041, 1050.) Willful failure to comply with that duty subjects a manufacturer to a civil penalty of up to twice the amount of actual damages. (Civ. Code § 1794(c).) Critical to the showing of “willfulness” is whether the manufacturer knew of the alleged defect, including not only through evidence that the vehicle was not been repaired after a reasonable number of attempts, but also through internal investigations and warranty records showing that other consumers were similarly affected. (*Jensen v. BMW of N. Am., Inc.* (1995) 35 Cal.App.4th 112, 136 [in assessing whether a violation is willful, the jury is entitled to consider, among other things, whether “the manufacturer knew the vehicle had not been repaired within a reasonable period or after a reasonable number of attempts”]; *Oregel, supra*, 90 Cal.App.4th at 1104-1105 [evidence that defendant-manufacturer was aware of unsuccessful repair attempts can support civil penalty liability]; *Troensegaard v. Silvercrest Indus., Inc.* (1985) 175 Cal.App.3d 218, 226 [noting that defendant manufacturer’s possession of a report on the defective condition was sufficient to support civil penalty liability]; *Krotin v Porsche Cars North America, Inc.* (1995) 38 Cal.App.4th 294, 303 [noting an “automobile manufacturer need not read minds to determine which vehicles are defective; it need only read its dealers’ service records”].)

Standard - A party may file a motion compelling further answers to RFPs if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (C.C.P. §2031.310.) The moving party on a motion to compel further responses to RFPs must set forth “specific facts showing good cause justifying the discovery sought by the demand.” (C.C.P. §2031.310(b)(1).) The burden to establish “good cause,” is met by a fact-specific showing of relevance. (*Glenfed Develop. Corp. v. Sup. Ct.* (National Union Fire Ins. Co. of Pittsburgh, Penn.) (1997) 53 Cal.App.4th 1113, 1117, citing Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 1996) ¶¶ 8:1495.6 to 8:1495.10.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating settlement.” (*Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) It is sufficient if the information sought might reasonably lead to admissible evidence. (C.C.P. §2017.010.) Once good cause is established, the responding party has the burden to justify any objections. (*Kirkland, supra*, 25 Cal.App.4th at 98.)

RFP nos. 7, 10, and 41 - ask for Defendant’s “Warranty Policy and Procedure Manual,” its “Workshop Manual” regarding the 2023 Honda Accord Hybrid, and Defendant’s rules, policies, or procedures regarding its issuance of refunds or replacements to buyers under the Song Beverly Act. (Demery Decl., Ex. 3, nos. 7, 10, 41.) In response to each of these RFPs, Defendant states that after a diligent search and reasonable inquiry, it cannot comply because no such documents exist. (Demery Decl., Ex. 4, nos.

7, 10, 41.) This is a proper response. (C.C.P. § 2031.230.) In addition, in response to RFP no. 7, Defendant states that even though the actual document requested by Plaintiff does not exist, it will produce “documents regarding AHM’s automotive policies and procedures regarding warranty coverage and repair.” Thus, the motion is denied as to RFP nos. 7, 10, and 41.

RFP nos. 28 and 29 - request related to any TSB or recall issued or to be issued regarding the 2023 Honda Accord Hybrid. (Demery Decl., Ex. 3, nos. 28-29.) Although the responses are somewhat unclear, it appears that Defendant has agreed to produce responsive documents. (Demery Decl., Ex. 4, nos. 28-29.) Accordingly, the motion is denied as to RFP nos. 28 and 29 as well.

RFP nos. 16-23 and 26-27 - ask for all documents, including ESI, on various issues related to the “electrical defect” and the “seatbelt defect” in vehicles of the same year, make, and model as the Vehicle, including: Defendant’s internal analysis or investigation; communications; decisions to issue notices, letters, campaigns, warranty extensions, TSBs, or recalls; and fixes for these defects. (Demery Decl., Ex. 3, nos. 16-23, 26-27.) Defendant objects to these RFPs on the grounds they are vague, ambiguous, and overbroad; not relevant or reasonably calculated to lead to admissible evidence; and do not describe the requested documents with particularity. (Demery Decl., Ex. 4, nos. 16-23, 26-27.)

In its responses and its opposition, Defendant argues that the RFPs are overbroad because the definitions of “electrical defect” and “seatbelt defect” include vague symptoms without boundaries. (*Ibid.*; Opposition, pp. 5:20-6:8.)

The RFPs define “electrical defect” and “seatbelt defect” as follows:

9. The term “ELECTRICAL DEFECT” shall be understood to mean such defects which result in symptoms including: apple car play does not connect; screen black; when making a phone call the phone call stays active even after the car had been turned off; dash warning come on while sitting; EPS warning; vehicle display indicate system update; system update; code u3000-49; replace EPS unit; car play does not connect; EPS internal circuit malfunction; claim no. 682985; techline 4940693; software update cause audio unit to no longer be able to over air; and any other concern identified in the repair history for the SUBJECT VEHICLE.

10. The term “SEAT BELT DEFECT” shall be understood to mean such defects which result in symptoms including: passenger side seat belt buckle hard to latch; passenger side seat belt buckle pops out; internal malfunction in seat belt buckle; driver seat belt buckle will not latch; defective seat belt buckle; replace seat belt buckle; defective part 04813-30B-A10ZA; replace part 04813-30B-A10ZA; and any other concern identified in the repair history for the SUBJECT VEHICLE.

(Demery Decl., Ex. 3, Definitions ¶¶ 9-10.) Defendant acknowledges that Plaintiff’s repair history includes at least the following concerns: “1) Apple Car Play does not connect at times; 2) all dash warnings came on while sitting in a drive thru when car was turned off and restarted only EPS warning was on and steering wheel feels loose; 3) passenger side seat belt buckle is hard to latch and hold, pops out; 4) driver’s seat belt buckle at times will not buckle and latch; 5) software update message appears on

the dash and radio display; 6) Apple Car Play screen appears to be stuck on a phone call; and 7) passenger front weatherstrip seal is coming out.” (Opposition, pp. 1:21-2:3; Galstyan Decl., Ex. A.) The above definitions appear to properly encompass the complaints made by Plaintiff regarding the Vehicle. While they add code, claim, and part numbers, this does not appear to make them overbroad, as these numbers appear to relate to the identified concerns. Therefore, Defendant’s objection that the definitions of the electrical and seatbelt defects make the RFPs overbroad lacks merit.

Defendant also argues that the RFPs are improper because Plaintiff is not entitled to information about other vehicles, and information about the cause of any defects is not relevant. To the contrary, plaintiffs in Song Beverly Act actions are entitled to information about other vehicles with the same make and model with the same defects. (See e.g., *Donlen v. Ford Motor Co.* (2013) 217 Cal.App.4th 138; *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 971.) This is precisely what the above RFPs request. Additionally, even if Defendant is correct that information about the cause of a defect is unnecessary to support a Song Beverly Act claim, the information sought in these RFPs is relevant to issues regarding whether and when Defendant knew of a defect in the vehicle to show a willful failure to comply with the Song Beverly Act. (See, Civ. Code § 1794(a); *Mexia, supra*, 17 Cal.App.4th at 1304-05; *Jensen, supra*, 35 Cal.App.4th at 136; *Oregel, supra*, 90 Cal.App.4th at 1104-1105; *Troensegaard, supra*, 175 Cal.App.3d at 226; and *Krotin, supra*, 38 Cal.App.4th at 303.) The motion is granted as to RFP nos. 16-23 and 26-27.

RFP Nos. 71-75 - ask for all documents related to Defendant’s TSB 89-006, TSB 23-004, TSB 23-043, Recall 23-098, and Recall 24-049. (Demery Decl., Ex. F, nos. 71-75.) Defendant objects to these RFPs on the grounds they are vague, ambiguous, and overbroad; not relevant or reasonably calculated to lead to admissible evidence because the cause of a defect is not relevant to a Song Beverly Act claim; do not describe the requested documents with particularity; and seek documents containing confidential or proprietary information. (Demery Decl., Ex. 4, nos. 71-75.) Objections based on confidentiality are not proper grounds for withholding responsive information. (See, *Columbia Broadcasting Sys., Inc. v. Sup. Ct.* (1968) 263 Cal.App.2d 12, 23 [“We know of no case holding that this is a proper objection to an otherwise proper interrogatory.”].) As discussed above, none of the other objections made by Defendant have merit. While Defendant agreed, in response to nos. 72-75, to provide limited documents (“the requested production will be allowed in part”), it is not entitled to re-write the RFP and/or self-limit the production of documents. Accordingly, the motion is granted as to RFP nos. 71-75.